

Strategic Case Inquiry: Cross-Border GDPR Art. 15 Non-Response & Algorithmic Opacity — GitHub (Microsoft) / Case Dr. Kovnatsky

От Dr. Artiom A. Kovnatsky <artiomkovnatsky@pm.me>
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Дата четверг, 9 июля 2026 г., 11:00 ДП

Dear noyb Team,

I am seeking strategic legal representation for a case involving systemic GDPR (Art. 15, Art. 22) and Digital Services Act (Art. 17) violations by GitHub, Inc. / GitHub B.V. (Microsoft).

Summary of facts:

- **The incident:** In April 2026, my verified account (skovnats) was subjected to an automated, undisclosed 16-day suspension ("shadowban") without prior notice and/or justification. GitHub later confirmed, after manual review, that this resulted from an algorithmic error.
- **The GDPR violation:** On 26 June 2026, I submitted a comprehensive Art. 15 GDPR / Art. 17 DSA request (focused on server logs, classifier outputs, and routing metadata). GitHub has not responded. The statutory deadline expires on 27 July 2026. A formal legal hold notice for evidence preservation has already been served.
- **Context and significance:** The suspension significantly disrupted the release of my open-source scientific framework, S.V.E., and coincided with FOIA-equivalent (IFG) litigation I am pursuing against the German Federal Foreign Office before the Berlin Administrative Court. There is reasonable suspicion of a flawed automated risk assessment causing cross-platform reputational harm ("metadata pollution").

Objective: To compel full disclosure of the algorithmic logic applied to my data (Art. 15(1)(h) GDPR) and to pursue damages (Art. 82 GDPR) against a dominant market actor. My legal protection insurer (ROLAND) has already confirmed coverage for the initial consultation, and based on prior experience, insurers are typically willing to extend coverage to the full case once outside counsel confirms its merits and strategic potential — this could substantially reduce noyb's own resource burden if you take this on.

Full documentation (DSAR requests, support tickets, evidence history, incl. OSF) is

attached.

Would noyb have the capacity to review this as a strategic case, or refer it to a specialized partner firm?

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder [S.V.E.](https://zenodo.org/communities/sve) | <https://zenodo.org/communities/sve>

6.11 МБ 8 файлов прикреплено

Report_init-wAuthor_Note.txt 5.47 КБ

Requests-GitHub.pdf 193.95 КБ

LEGALCASE-PREPS.pdf 301.30 КБ

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